

26CHCP00297 26CHCP00297

County: los-angeles

Division: Civil Law and Motion

Department: F49

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Case Number: 26CHCP00297 Hearing Date: August 31, 2026 Dept: F49

Dept. F49

Date: 8/31/26

Case Name: Roxana Maria Patrick vs. Restoration Masters
(Harko Construction, Inc.)

Case No. 26CHCP00297

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

AUGUST 31, 2026

PETITION FOR
RELEASE OF MECHANIC'S LIEN

Los Angeles Superior
Court Case No. 26CHCP00297

Motion filed: 8/6/26

MOVING PARTY: Petitioner Roxana Maria Patrick

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: An order from this Court releasing property commonly known as 28122 Oaklar Drive, Santa Clarita, California 91350 from a claim of lien recorded by Respondent Restoration Masters.

TENTATIVE RULING: The Petition is DENIED WITHOUT PREJUDICE.

BACKGROUND

This petition arises from the alleged failure of Respondent Restoration Masters ("Respondent") to timely commence an action to enforce its claim of lien against property commonly known as 28122 Oaklar Drive, Santa Clarita, California 91350 (the "Subject Property"). (Pet., ¶¶ 2-4.) On August 6, 2026, Petitioner in pro per Roxana Maria Patrick, trustee of the Budeanu Family Trust ("Petitioner"), filed the instant Petition for Release of Mechanic's Lien (the "Petition") against Respondent.

No opposition or objection to the Petition has been filed.

ANALYSIS

A claimant must commence an action to enforce a claim of lien within 90 days after recording the claim of lien. (Civ. Code, § 8460, subd. (a).) If the claimant does not commence an action within this 90-day time frame, "[t]he owner of property or the owner of any interest in property subject to a claim of lien may petition the court for an order to release the property from the claim of lien." (Civ. Code, § 8480, subd. (a).)

Before petitioning the court for a release order, the property owner must give the claimant notice "demanding that the claimant execute and record a release of the claim of lien." (Civ. Code, § 8482.) This demand must be made at least ten days before filing the petition. (Ibid.)

A petition for release of a lien must be verified and allege the following:

(a)

The date of recordation of the claim of lien.

(b)

The county in which the claim of lien is recorded.

(c)

The book and page or series number of the place in the official records where the claim of lien is recorded.

(d)

The legal description of the property subject to the claim of lien.

(e)

Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired.

(f)

That the owner has given the claimant notice under Section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found.

(g)

Whether an action to enforce the lien is pending.

(h)

Whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien.

(Civ. Code, § 8484.) A certified copy of the claim of lien must also be attached to the petition. (Id., § 8484, subd. (a).)

"The petitioner shall serve a copy of the petition and a notice of hearing on the claimant at least

15 days before the hearing. Service shall be made in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested, addressed to the claimant as provided in Section 8108." (Civ. Code, § 8486, subd. (b).) If service is made by mail, service is deemed complete on the fifth day after deposit of the petition and notice in the mail. (Id., § 8486, subd. (c).)

A.

Preliminary

Considerations

Pursuant to Civil Code section 6125, "[n]o person shall practice law in California unless the person is an active licensee of the State Bar." The rule prohibits a person who is not a licensed attorney from appearing in court on behalf of another person. (Ziegler v. Nickel (1998) 64 Cal.App.4th 545, 547-548.) This prohibition extends to a trustee representing trust beneficiaries in adversarial proceedings. (See id.) When the trustee of a trust initiates proceedings against a third person, the trustee is representing and affecting the interests of the beneficiaries, which is not permitted under section 6125. (Id., at p. 549.) In such circumstances, the trust must be represented by a licensed attorney.

A trustee may only represent the trust in actions involving the trust corpus where the trustee "is also the trust's sole settlor and beneficiary," in which case there would be no other interests at stake except the trustee's. (Aulisio v. Bancroft (2014) 230 Cal.App.4th 1516, 1519.)

As a preliminary consideration, the Court notes that Petitioner has filed the Petition in pro per on behalf of the Budeanu Family Trust. There is no indication, however, that Petitioner is an active licensee of the State Bar or is representing solely her own interests.

The Court accordingly has insufficient information to determine whether hearing on the Petition may proceed.

The Petition is accordingly DENIED WITHOUT PREJUDICE.

CONCLUSION

Petitioner Roxana Maria Patrick's Petition for Release of

Mechanic's Lien is DENIED WITHOUT PREJUDICE.

Clerk to give notice.